

Opinion of the Court

that “the Government presented evidence of three questions or matters”: (1) “whether researchers at any of Virginia’s state universities would initiate a study of Anatabloc”; (2) “whether the state-created Tobacco Indemnification and Community Revitalization Commission” would “allocate grant money for the study of anatabine”; and (3) “whether the health insurance plan for state employees in Virginia would include Anatabloc as a covered drug.” 792 F. 3d, at 515–516.

The problem with the District Court’s instructions is that they provided no assurance that the jury reached its verdict after finding those questions or matters. The testimony at trial described how Governor McDonnell set up meetings, contacted other officials, and hosted events. It is possible the jury thought that a typical meeting, call, or event was itself a “question, matter, cause, suit, proceeding or controversy.” If so, the jury could have convicted Governor McDonnell without finding that he committed or agreed to commit an “official act,” as properly defined. To prevent this problem, the District Court should have instructed the jury that it must identify a “question, matter, cause, suit, proceeding or controversy” involving the formal exercise of governmental power.

Second, the instructions did not inform the jury that the “question, matter, cause, suit, proceeding or controversy” must be more specific and focused than a broad policy objective. The Government told the jury in its closing argument that “[w]hatever it was” Governor McDonnell had done, “it’s all official action.” App. to Pet. for Cert. 263a–264a. Based on that remark, and the repeated references to “Bob’s for Jobs” at trial, the jury could have thought that the relevant “question, matter, cause, suit, proceeding or controversy” was something as nebulous as “Virginia business and economic development,” as the District Court itself concluded. Supp. App. 87–88 (“The alleged official actions in this case were within the range of actions on questions, matters, or